

SUMMONS ISSUED

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
IN CLERK'S OFFICE
US DISTRICT COURT E.D.N.Y.

★ OCT 31 2011 ★

KABRINA STEPHENS,

Plaintiff, ~~COMPLAINT~~ **BROOKLYN OFFICE**

-against-

CV 11 - 5281

THE CITY OF NEW YORK; SGT. ANDREW
HILLERY; DET. ANDREW FAGO; DET. RIVERA;
DET. FRIED; DET. BROOKS; DET. BANGHART;
DET. MEIGS; DET. SANCHEZ; and DET.
SPOSITO; the individual defendant(s) sued
individually and in their official
capacities,

ECF Case

Jury Trial Demanded

TOWNES, J.

Defendants.

AZRACK, M.J.

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of the plaintiff's rights secured by 42 U.S.C. §§ 1983; and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from an incident that arose on or about August 27, 2010. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, false arrest, excessive force, malicious prosecution, conspiracy, retaliation, fabricated evidence, denial of a fair trial, and implementation and continuation of an unlawful municipal policy, practice, and

custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. §§ 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983, and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper here pursuant to 28 U.S.C. § 1391 because some of the acts in question occurred in Richmond County, and the City of New York is subject to personal jurisdiction in the Eastern District of New York.

PARTIES

5. Plaintiff Kabrina Stephens is a resident of the State of New York, Richmond County.

6. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

7. At all times alleged herein, defendant Sgt. Andrew Hillery, assigned Tax # 925457, was a New York City

Police Officer, employed with the "NBSI" and/or the 120th Precinct, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

8. At all times alleged herein, defendant Det. Andrew Fago, assigned Tax # 928265, was a New York City Police Officer, employed with the "NBSI" and/or the 120th Precinct, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

9. At all times alleged herein, defendant Det. Rivera was a New York City Police Officer, employed with the "NBSI" and/or the 120th Precinct, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

10. At all times alleged herein, defendant Det. Fried was a New York City Police Officer, employed with the "NBSI" and/or the 120th Precinct, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

11. At all times alleged herein, defendant Det. Brooks was a New York City Police Officer, employed with the "NBSI" and/or the 120th Precinct, located in Richmond County, New

York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

12. At all times alleged herein, defendant Det. Hernandez was a New York City Police Officer, employed with the "NBSI" and/or the 120th Precinct, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

13. At all times alleged herein, defendant Det. Banghart was a New York City Police Officer, employed with the "NBSI" and/or the 120th Precinct, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

14. At all times alleged herein, defendant Det. Meigs was a New York City Police Officer, employed with the "NBSI" and/or the 120th Precinct, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

15. At all times alleged herein, defendant Det. Sanchez was a New York City Police Officer, employed with the "NBSI" and/or the 120th Precinct, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

16. At all times alleged herein, defendant Det. Sposito was a New York City Police Officer, employed with the "NBSI" and/or the 120th Precinct, located in Richmond County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

17. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

18. On August 27, 2010, at and in the vicinity of 55 Bowen Street, Apt. # 508, Staten Island, New York, "NBSI", and the 120th Precinct, Staten Island, New York, several police officers operating from the "NBSI" and/or the 120th Precinct, located in Richmond County, New York, including upon information and belief, defendants Sgt. Andrew Hillery, Det. Andrew Fago, Det. Rivera, Det. Fried, Det. Brooks, Det. Hernandez, Det. Meigs, Det. Sanchez, and Det. Sposito, at times acting in concert and at times acting independently, committed the following illegal acts against the plaintiff(s).

19. On August 27, 2010, at approximately 6:00 a.m., at and in the vicinity of 55 Bowen Street, Apt. # 508, Staten Island, New York ("the apartment"), Sgt. Andrew Hillery, Det. Andrew Fago, Det. Rivera, Det. Fried, Det. Brooks, Det. Hernandez, Det. Meigs, Det. Sanchez, and Det. Sposito, without

either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that the plaintiff(s) (or any third person) had committed a crime unlawfully entered the apartment.

20. Kabrina's mother Elaine Matthew leased the apartment, and Kabrina and Elaine lived in the apartment.

21. Elaine was awoken by noises coming from the hallway outside her apartment.

22. Elaine was dressed in her nightclothes.

23. Kabrina was dressed in her underwear.

24. Elaine went to see what was happening in the hallway, when the defendants, including Sgt. Andrew Hillery, Det. Andrew Fago, Det. Rivera, Det. Fried, Det. Brooks, Det. Hernandez, Det. Meigs, Det. Sanchez, and Det. Sposito rushed through her front door into the apartment.

25. Once the defendants entered the apartment, Elaine and Kabrina were not free to disregard the defendants' questions, walk away or leave the scene.

26. The defendants intentionally struck Elaine and knocked her into her refrigerator.

27. One defendant grabbed Elaine by the neck and threw her to the floor.

28. Another defendant trampled Elaine, stepping on her breast.

29. Elaine urinated on herself.

30. The defendants grabbed and twisted Elaine's arms, and placed excessively tight handcuffs on her wrists.

31. Kabrina was in her bed in the living room, when the defendants entered the apartment.

32. The defendants rushed at Kabrina with their firearms drawn.

33. The defendants grabbed Kabrina and violently yanked her off her bed onto the floor.

34. The defendants wrenched Kabrina's arms behind her back and placed excessively tight handcuffs on her wrists.

35. The defendants walked around the apartment while Kabrina and Elaine lay on the floor in their nightclothes and underwear.

36. Eventually, the defendants pulled Elaine and Kabrina off the floor and made them sit in their living room in handcuffs.

37. Elaine and Kabrina complained to the defendants about how they were being mistreated.

38. Elaine and/or Kabrina complained about their injuries, asked the defendants for an explanation why this was

happening, asked on what authority they had entered their apartment, and asked why they were in handcuffs.

39. The defendants ignored their questions and requests.

40. The majority of the individual defendants were men.

41. Kabrina and Elaine also asked to be allowed to get dressed.

42. The defendants ignored this request for several minutes, until eventually a female defendant took Elaine and Kabrina each in turn to get dressed in the bathroom.

43. Once dressed, the female defendant placed the handcuffs back on Kabrina and Elaine wrists. The handcuffs were excessively tight.

44. The above-described acts of force were malicious, gratuitous, and unnecessary.

45. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against the plaintiff(s), since they were unarmed, compliant, and did not resist arrest.

46. Kabrina and Elaine were physically injured as a result of the excessive use of force.

47. Elaine's injuries required medical attention, and she was treated at a hospital.

48. Those defendants who did not touch the plaintiff(s), witnessed these acts of force, but failed to intervene and protect them from this misconduct.

49. The defendants searched the apartment and purposely, wantonly, and carelessly damaged and disrupted the personal property of the plaintiff(s).

50. The defendants found no controlled substance, contraband, or weapons in the apartment or on Elaine or Kabrina, during the entire incident alleged in the complaint.

51. However, during the search the defendants saw Elaine's NYPD School Crossing Guard uniform.

52. The defendants asked for Elaine's identification.

53. Elaine showed the defendants where her identification was located.

54. The defendants obtained Elaine's identification and verified that she was employed by the NYPD.

55. One of the defendants exclaimed: she's one of us.

56. The defendants took Elaine and Kabrina from their apartment to the hallway and eventually into an elevator.

57. In the elevator, Kabrina and Elaine heard one of the defendants speak over the radio: 508 negative.

58. Elaine and Kabrina continued to complain about their mistreatment, and asked why they were still under arrest.

59. The defendants ignored them.

60. The defendants put Elaine and Kabrina in a van with other arrestees.

61. The defendants drove Elaine and Kabrina to the 120th Precinct for arrest processing.

62. One person vomited in the van during the ride.

63. The defendants processed Elaine's and Kabrina's arrests at the 120th Precinct.

64. Elaine was given Arrest # S10609773.

65. Kabrina was given an arrest number.

66. In order to cover up that there was no basis for their arrest, upon information and belief, Sgt. Andrew Hillery, Det. Andrew Fago, Det. Rivera, Det. Fried, Det. Brooks, Det. Hernandez, Det. Meigs, Det. Sanchez, and Det. Sposito, pursuant to a conspiracy, falsely and maliciously told the Richmond County District Attorney's Office that Kabrina and Elaine had committed various crimes, including violations of N.Y.S. P.L. §§ 220.03, by stating that they were in possession of an amount of marijuana.

67. Upon information and belief, the defendants also falsely claimed that they observed Elaine and Kabrina in possession of cocaine.

68. However, the Richmond County District Attorney's Office declined to Kabrina, and she was released from Central Booking without any charges being filed against her.

69. The criminal case terminated in Kabrina's favor on or about August 27, 2010.

70. Elaine was arraigned at Central Booking and released on her own recognizance; and pursuant to NYPD policy Elaine was taken forthwith for mandatory drug testing in Queens, New York.

71. The drug test came back negative for any controlled substances.

72. Upon information and belief, Sgt. Andrew Hillery and Det. Andrew Fago obtained an unlawful search warrant in this matter by recklessly, deliberately and inadequately conducting any investigation, and/or purposely misrepresenting facts to a magistrate or court official.

73. Elaine was initially suspended by the NYPD as a result of her arrest and prosecution, and disciplinary charges were brought against her.

74. During the course of Elaine's disciplinary proceedings, Elaine was informed that if she did not resign, she would be fired, despite the fact that the criminal case was still open, she maintained her innocence, and had tested negative for controlled substances.

75. Elaine refused to resign, and on May 13, 2011, she was wrongfully terminated by the City of New York and the NYPD as a School Crossing Guard after 23 years of service.

76. Elaine was terminated without cause or justification as the result of the exercise of her constitutional rights in maintaining her innocence against false charges brought against her the defendants.

77. After appearing numerous times in court, the criminal case against Elaine was dismissed in its entirety, terminating in her favor on August 26, 2011.

78. Elaine is currently appealing her termination.

79. The individual defendants acted in concert in committing the above-described illegal acts against the plaintiff(s).

80. The plaintiff(s) did not resist arrest at any time during the above-described incident.

81. The plaintiff(s) did not violate any law, regulation, or administrative code; commit any criminal act; or

act in a suspicious or unlawful manner in relationship to, or during the above-described incident.

82. The individual defendants did not observe the plaintiff(s) violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner in relationship to, or during the above-described incident.

83. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff(s) of his or her (their) rights.

84. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices against the plaintiff(s): (1) fabricating evidence against innocent persons; (2) unlawfully obtaining and executing search warrants; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using excessive force on individuals; and (5) arresting innocent people in order to meet productivity goals.

85. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences

of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

86. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of the plaintiff(s).

87. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by the plaintiff(s) as alleged herein.

88. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by the plaintiff(s) as alleged herein.

89. As a direct and proximate result of the defendants' actions the plaintiff(s) experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

90. The plaintiff(s) is (are) entitled to receive punitive damages from the individual defendants because the

individual defendants' actions were motivated by extreme recklessness and indifference to the rights of the plaintiff(s).

FIRST CLAIM

(FALSE ARREST & UNLAWFUL SEARCH AND SEIZURE)

91. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

92. The individual defendants unlawfully seized, searched, and falsely arrested plaintiff(s) without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff(s) (or any third person) had committed a crime.

93. Accordingly, the defendants are liable to the plaintiff(s) for unlawful search and seizure and false arrest under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(EXCESSIVE FORCE)

94. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

95. The individual defendants' use of force upon the plaintiff(s) as described herein, and the individual defendants' failure to intervene, was objectively unreasonable and caused the plaintiff(s) pain and injury.

96. Accordingly, the defendants are liable to the plaintiff(s) for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

THIRD CLAIM

(MALICIOUS PROSECUTION CLAIM)

97. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

98. The individual defendants are liable to the plaintiff(s) for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated malicious prosecution(s) against the plaintiff(s) by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the court(s), which alleged plaintiff(s) had committed various crimes.

99. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

100. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

101. The above-stated malicious prosecution(s) caused a sufficient post-arraignment liberty restraint on the plaintiff(s).

FOURTH CLAIM

(FABRICATED EVIDENCE)

102. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

103. The defendants are liable to plaintiff(s) because they intentionally conspired to fabricate evidence against the plaintiff(s), depriving the plaintiff(s) of liberty without due process of law.

104. In addition, the defendants used and presented the fabricated evidence to prosecute plaintiff(s).

105. Further, the defendants were on notice that creating fabricated evidence is a clear violation of law because it well established that police officers who knowingly use false evidence to obtain a conviction act unconstitutionally.

106. Furthermore, the defendants violated the law by making false statements of fact in a certification for determination of probable cause and/or a conviction, because they performed a function of a complaining witness.

FIFTH CLAIM

(DENAIL OF A FAIR TRIAL)

107. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

108. The individual defendants are liable to plaintiff(s) because they intentionally created false information likely to influence a fact finder's or jury's decision and forwarded that information to prosecutors, a grand jury, a jury, and/or court, thereby violating the constitutional right of the plaintiff(s) to a fair trial, and the harm occasioned by such an unconscionable action is redressable in an action for damages under 42 U.S.C. § 1983.

SIXTH CLAIM

(RETALIATION CLAIM)

109. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

110. The plaintiff(s) exercised free speech and association during the incident by, among other things, telling the individual defendants that the plaintiff(s) had not committed a crime, and that the defendants' were unlawful.

111. The use of free speech by the plaintiff(s) was a motivating factor in the individual defendants' decision to arrest, and prosecute the plaintiff(s).

112. Accordingly, the individual defendants are liable to plaintiff under the First Amendment to the United States Constitution.

SEVENTH CLAIM

(42 U.S.C. § 1983 CONSPIRACY)

113. Plaintiff(s) repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

114. Defendants are liable to plaintiff(s) because they agreed to act in concert to inflict an unconstitutional injury; and committed an overt act done in furtherance of that goal causing damage to plaintiff(s).

EIGHTH CLAIM

(MONELL CLAIM)

115. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

116. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiffs.

117. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants are unfit officers who have previously committed the acts

alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

118. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

119. Further, defendant City of New York was aware prior to the incident that the individual defendants, in continuation of defendant City of New York's illegal customs, practices and/or policies, violated the law.

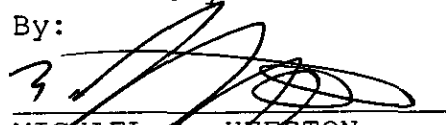
WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
October 28, 2011

MICHAEL O. HUESTON, ESQ.
Attorney for Plaintiff
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New York, New York 10118
(212) 643-2900
mhueston@nyc.rr.com

By:


MICHAEL O. HUESTON

JS 44 (Rev. 12/07)

SUMMONS ISSUED COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 2007, is intended for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON THE REVERSE OF THE FORM)

I. (a) PLAINTIFFS

Kabrina Stephens

(b) County of Residence of First Listed Plaintiff Kings County
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorney's (Firm Name, Address, and Telephone Number)

Michael O. Hueston, Esq. 350 5th Ave., Ste. 4810, NY, NY 10118,
(212) 643-2900

DEFENDANTS

City of New York, et al.

County of Residence of First-Listed Defendant Kings County
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE
LAND INVOLVED.

Attorneys (If Known)

NYC Law Department, 100 Church Street, NY, NY 10007

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
☒ 3 Federal Question (U.S. Government Not a Party)
☐ 2 U.S. Government Defendant
☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- Citizen of This State ☐ 1 PTF ☐ 1 DEF
Citizen of Another State ☐ 2 PTF ☐ 2 DEF
Foreign Country ☐ 3 PTF ☐ 3 DEF
Incorporated or Principal Place of Business in This State ☐ 4 PTF ☐ 4 DEF
Incorporated and Principal Place of Business in Another State ☐ 5 PTF ☐ 5 DEF
Foreign Nation ☐ 6 PTF ☐ 6 DEF

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	REAL PROPERTY	CIVIL RIGHTS	PRISONER PETITIONS	FORFEITURE/PENALTY	LABOR	IMMIGRATION	BANKRUPTCY	PROPER RIGHTS	SOCIAL SECURITY	FEDERAL TAX SUITS	OTHER
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excl. Veterans) ☐ 153 Recovery of Overpayment of Veterans' Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 444 Welfare ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☒ 440 Other Civil Rights	☐ 510 Motions to Vacate Sentence ☐ Habeas Corpus: ☐ 530 General ☐ 535 Death Penalty ☐ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition	☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury	☐ 362 Personal Injury - Med. Malpractice ☐ 365 Personal Injury - Product Liability ☐ 368 Asbestos Personal Injury Product Liability ☐ 370 Other Fraud ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 610 Agriculture ☐ 620 Other Food & Drug ☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 630 Liquor Laws ☐ 640 R.R. & Truck ☐ 650 Airline Regs. ☐ 660 Occupational Safety/Health ☐ 690 Other	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157	☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark	☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g))	☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609	☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 810 Selective Service ☐ 850 Securities/Commodities/Exchange ☐ 875 Customer Challenge 12 USC 3410 ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 892 Economic Stabilization Act ☐ 893 Environmental Matters ☐ 894 Energy Allocation Act ☐ 895 Freedom of Information Act ☐ 900 Appeal of Fee Determination Under Equal Access to Justice ☐ 950 Constitutionality of State Statutes

V. ORIGIN

(Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
☐ 2 Removed from State Court
☐ 3 Remanded from Appellate Court
☐ 4 Reinstated or Reopened
☐ 5 Transferred from another district (specify)
☐ 6 Multidistrict Litigation
☐ 7 Appeal to District Judge from Magistrate Judgment

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):

42 USC 1983

Brief description of cause:

police officer misconduct

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER F.R.C.P. 23

DEMAND \$

CHECK YES only if demanded in complaint

JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE Korman, J.; and Levy, M.J.

DOCKET NUMBER 11-cv-2824

DATE

10/28/2011

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE

MAG. JUDGE

5281

Townes / Azrak

ARBITRATION CERTIFICATION

I, Michael Hueston, counsel for plaintiff(s) do hereby certify pursuant to the Local Arbitration Rule 83.10 that to the best of my knowledge and belief the damages recoverable in the above captioned civil action exceed the sum of \$150,000 exclusive of interest and costs.
☒ Relief other than monetary damages is sought.

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:
N/A

Please refer to NY-E Division of Business Rule 50.1(d)(2)

1.) Is the civil action being filed in the Eastern District of New York removed from a New York State court located in Nassau or Suffolk County: NO

2.) If you answered "no" above:

a.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? NO

b.) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? Yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? _____

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

Yes ☒

No _____

Are you currently the subject of any disciplinary action(s) in this or any other state or federal court?

Yes _____ (If yes, please explain)

No ☒

Please provide your E-MAIL Address and bar code below. Your bar code consists of the initials of your first and last name and the last four digits of your social security number or any other four digit number registered by the attorney with the Clerk of Court.

(This information must be provided pursuant to local rule 11.1(b) of the civil rules).

ATTORNEY BAR CODE: MH-0931

E-MAIL Address: mhueston@nyc.rr.com

I consent to the use of electronic filing procedures adopted by the Court in Administrative Order No. 97-12, "In re Electronic Filing Procedures (EFP)", and consent to the electronic service of all papers.

Signature: _____

